

FIFTH SEMESTER)		
Law-536: C.P.C (Civil Procedure Code & Limitation Act)	:	PAPER – I

Unit – I

1. Definitions: Decree, Order, Judgement, Preliminary Decree, Final Decree, Mesne Profit,
2. Jurisdiction of civil courts.
3. Res-subjudice and Res-judicata; Foreign judgment when it is conclusive.
4. Place of suing.
5. Service of summons.
6. Framing of issues.
7. Discovery.

Unit – II

1. Appearance of parties: Dismissal in default, Exparte decree, Setting aside of Exparte decree.
2. Interim orders i.e. Commissions, Temporary injunction; Receiver, arrest before judgment and attachment before judgment.
3. Suits of special nature: Representative suit, Inter pleader suit, Pauper suit, Suit by or against government, Suit in case of public nuisance.

Unit – III

1. Appeal, First and second appeal; Reference review and revision.
2. Execution: Transfer of decree for execution, Powers of transferee court, Transferor court and executing court; Stay of execution; Questions to be determined by executing court, Setting aside of judicial sale.
3. Inherent power of the court.

Unit – IV

1. **Limitation Act:** Limitation bars remedy does not extinguish the right; condonation of delay; Legal disability, Once time has begun to run no subsequent disability can stop it; Effect of fraud and mistake and valid acknowledgment.

Law-537: Bharatiya Sakshya Adhiniyam (BSA)	:	PAPER – II
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Unit-I

1. Historical Development: The Indian Evidence Act 1872 and Enactment of the Bhartiya Sakshya Adhiniyam 2023
2. Definitions (section 2)-“Evidence”, “Fact”, “Fact in issue”, “Relevant”, “document” “proved”, “disproved”, “not proved”, “may presume”, “shall presume”, and “conclusive proof”.
3. Closely connected facts (section 3-14) especially Relevancy of facts forming part of same transaction.

Unit-II

1. Admissions (section 15-21 & 25);
2. Confession Caused by Inducement, Threat, Coercion or Promise(section 22); Confession to police officer(section 23);
3. Confession Affecting Person making it and others jointly under Trial for same offence (section 24)
4. Dying Declaration (Section 26(1));
5. Judgments of Courts when relevant (section 34-38);
6. Opinions of third persons when relevant (section 39-45).

Unit-III

1. Facts which need not be proved (section 51-53)
2. Kinds of Evidence-Oral and Documentary Evidence’ Primary Evidence and Secondary Evidence, Documents as public documents and Private documents (sections 54-60, 64 & 74-77).
3. Electronic or digital records and its Admissibility(section 61-63)

4. Burden of Proof (section 104-114)
5. Presumptions

Unit-IV

1. The Principle of Estoppel (section 121-123)
2. Privileged communications such as Communication during Marriage between husband and wife, Professional Communications between Lawyer and Client etc.(section 128-134);
3. Accomplice (section 138 and section 119 Illustration)
4. Examination of Witnesses (section 140-165)

Law-538: Information Technology Law	:	PAPER – III
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Unit – I

1. **Introduction:** What is Cyber law; need for cyber law; Cyber Space
 - (i) History and Evolution of Cyber Crime
 - (ii) Definition and nature of Cyber Crime
 - (iii) Different kinds of Cyber Crime
 - (iv) Legal position around the globe
 - (v) Prevention of Cyber Crime (f) UNCITRAL (United Nations Commission on International Trade Law)

Unit – II

1. **Hacking:**
 - (i) Evolution of Hacking
 - (ii) The Techniques of Hacking
 - (iii) Reasons of Hacking
 - (iv) Prevention of Hacking
2. **Cyber Stalking:**
 - (i) Nature and extent of Cyber Stalking
 - (ii) Different kinds of Cyber Stalking
 - (iii) Methods of Cyber Stalking
3. **Pornography:**
 - (i) Pornography on the Internet
 - (ii) Obscenity and Pornography
 - (iii) Child Pornography

Unit – III

1. **Cyber Crimes in Financial Activities:**
 - (i) Kinds of financial Cyber Crime
 - (ii) Legal position in India
2. **Cyber Terrorism:**
 - (i) Definition and nature of Cyber Terrorism
 - (ii) Prevention of Cyber Terrorism
3. **E-Commerce:**
 - (i) Introduction
 - (ii) Digital signature
 - (iii) E-Contract
 - (iv) E-Governance

Unit – IV

1. **Privacy in Cyber Space:**
 - (i) Right to Privacy
 - (ii) Activities on Internet which can affect Privacy
 - (iii) The liabilities of an Internet Service Provider in Cyber Space
2. The Information Technology Act 2000 with amendments (An overview of the Act)

Law-539: Alternate Dispute Resolution		PAPER – IV
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UNIT – I

1. ADR: Concept and Its Methods – A Brief Survey.
2. Concept of Negotiation, mediation, and conciliation.
3. Introduction to Mediation Act 2023 , definitions, mediation agreement, mediation proceedings, online mediation.
4. Arbitration and Conciliation Act 1996, Arbitration and Conciliation (Amendment) Act, 2015, and 2019
5. Meaning of arbitration, Essentials of Arbitration, arbitration agreement,

UNIT – II

1. Scope of Judicial Interference in Arbitration, reference of disputes, interim relief,
2. Arbitrators: Number, Appointment, Removal, Termination of mandate and substitution

Unit – III

1. Jurisdiction of Arbitral Tribunal Conduct of Arbitral Proceedings: Determination of Rules of Procedure (g) Making of Arbitral Awards: Rules applicable to the substance of dispute (h) Recourse against Arbitral Award

Unit – IV

1. Foreign Award: Meaning and conditions of enforcement under Geneva and New-York Conventions
2. Conciliation and Conciliators: Appointment, Power and Functions, settlement agreement Its status and effect, confidentiality in proceedings.

Law-540: IPR - I	:	PAPER – V
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Unit – I

1. Intellectual Property Rights Jurisprudence:
 - (i) Tangible and Intangible things, Right over things
 - (ii) Property, Kinds of Property: Corporeal and Incorporeal; Theories of Property; Occupation, Utilitarian, Functional, Social Trust and Socialist theories.
 - (iii) Industrial property
 - (iv) Intellectual Property Rights: Definition and Nature
 - (v) Various kinds of IPR, Need for and Scope of Protection of IPR
 - (vi) Ownership and IPR
 - (vii) Morality and Public Order and IPR
 - (viii) Environment and IPR
 - (ix) Cultural Property and IPR
 - (x) Traditional knowledge and IPR

Unit – II

1. Patents Act, 1970

- (i) History and scope (ii) Definition and Kinds of Patents, Justifications for Patent Protection (iii) Criteria of Patentability: Inventiveness, Non-obviousness, and Utility (Capability of industrial application) (iv) Process for grant of Patent and Registration thereof: Application, Complete specification, Examination, Publication, Opposition and Grant.(v) Subject matter of patents (vi) Exploitation of Patents, Renewal and Revocation of Patents, Dependant Patents, Secret Patents and Patents of Addition.(vii) Rights of Patent Owner, Compulsory Licenses, Government use of Patents (viii) Violation of Patent Rights, and Remedies available to Patent Owner (ix) Biotechnological inventions and Patents

Unit – III

1. Trade Marks Act 1999

- (i) History and scope of Trade Marks
- (ii) Definition and Functions of a Trade Mark, Trade Names
- (iii) Criteria of Registration of a Trade Mark, Rights of Trade Mark Owner
- (iv) Infringement of Trade Marks and Remedies available to Trade Mark Owner
- (v) Intellectual Property Appellate Board
- (vi) Well Known Marks and their protection
- (vii) Passing Off
- (viii) Domain Names and their administration

Unit – IV

1. Industrial Designs Act, 2000

- (i) Brief History of Industrial Designs Law
- (ii) Industrial Designs as IPR
- (iii) Industrial Designs: Definition and Criteria of Registration
- (iv) Acquisition and exploitation of Design Rights
- (v) Infringement of Design Rights: Defences and Remedies

Law-541: Private International Law	:	PAPER – VI
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Unit – I

1. Introduction:

- (i) Meaning, Definition, Nature, Scope and Importance of Private International Law; (ii) Name of the subject “Private International Law” “Conflict of Laws” and other names; and (iii) Distinction between Private International Law and Public International Law.

2. Characterization / Classification and its theories

3. Doctrine of Renvoe

Unit – II

1. Domicile:

- (i) Meaning; and (ii) Domicile of Independent person.

2. The Law of Obligations: Contracts

- (a) Creation of the obligations; (b) General principles of Contract; and (c) The doctrine of proper law of contract: (i) Where there is express choice of proper Law, (ii) Where there is presumption of proper Law; and (iii) Present Position.

Unit – III

1. Foreign Torts:

- (i) The theories: (a) The *lex fori*, (b) The *lex loci delicti*, and (c) The proper law or social environment theory. (ii) Present position in English Law and Indian Law.

2. Principle of Private International Law in relation to Marriage and Matrimonial causes.

Unit – IV

1. Foreign judgments:

- (i) Basis of recognition of foreign judgment; (ii) Effect of recognition of foreign judgments in India; (iii) Finality of the judgment; and (iv) The execution of foreign decrees.